



DISCIPLINARY POLICY

SOUTH AFRICA ONLY

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1. POLICY

1.1 PURPOSE AND SCOPE OF THE POLICY

- 1.1.1 It is necessary to establish the standard of desired and acceptable behaviour with which TFG expects its employees to comply to ensure harmonious work relationships and acceptable conduct by employees.
- 1.1.2 Any wilful, intentional or negligent behaviour by an employee which does not meet the required standard set by TFG will be regarded as misconduct that could lead to disciplinary action against an employee. Examples of misconduct range from minor issues such as late coming for work to very serious misconduct such as theft or fraud.
- 1.1.3 The Disciplinary Policy is a codification of all disciplinary practices in TFG and establishes a common and uniform disciplinary process to regulate conduct in the workplace and protect the interests of TFG and its employees alike.
- 1.1.4 TFG may amend this Disciplinary Policy when deemed necessary.
- 1.1.5 The Disciplinary Policy applies to all TFG employees including, but not limited to, directors, management and all other permanent and temporary employees.
- 1.1.6 This Policy should be read with the TFG Code of Ethical Conduct.

1.2 SUPERSEDEDENCE

This policy replaces all previous TFG policies regarding the matters contained herein.

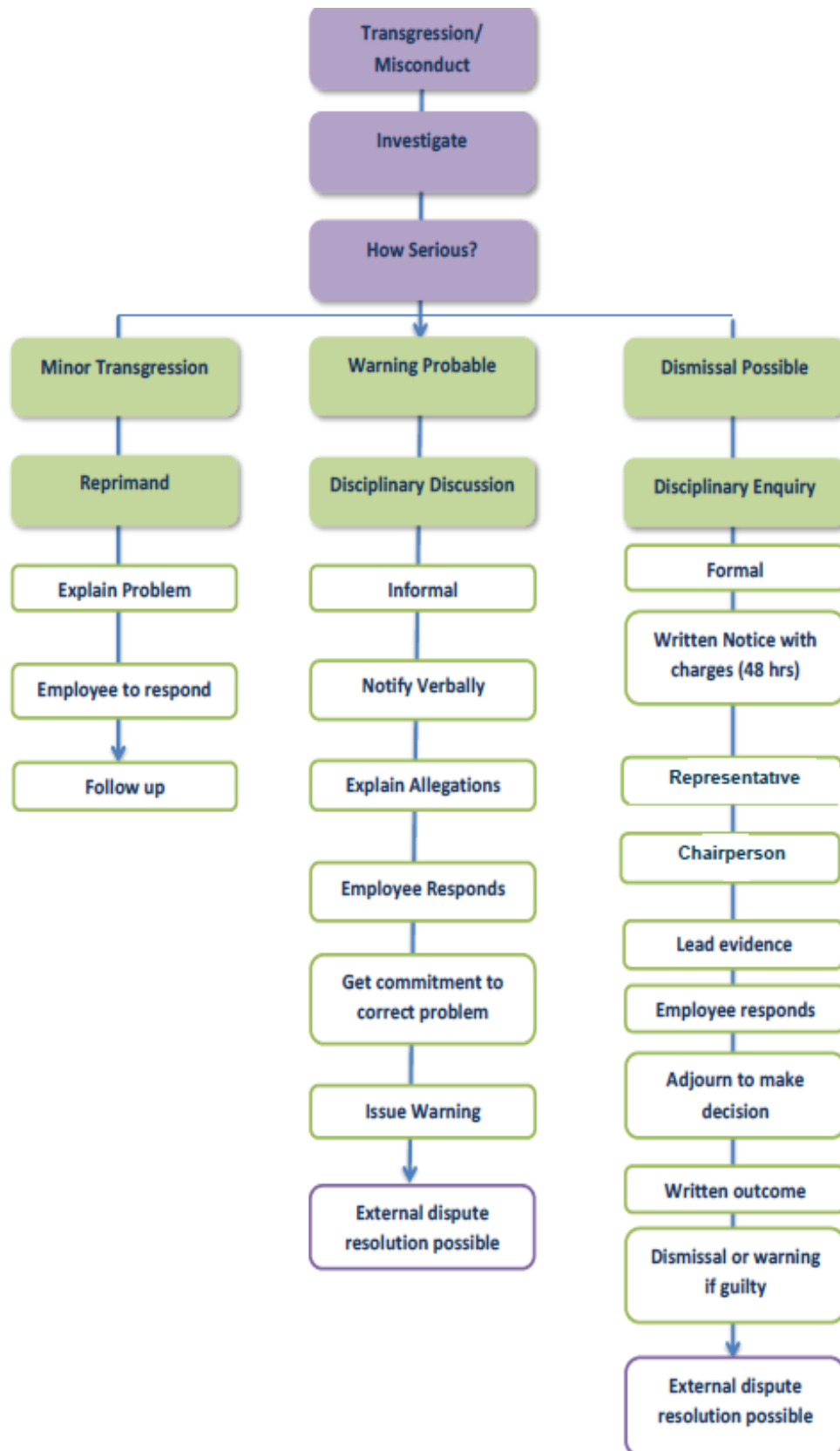
1.3 PRINCIPLES

- 1.3.1 Discipline should be enforced fairly and promptly, be lawful and reasonable and should be applied consistently to all employees.
- 1.3.2 Line management is responsible for maintaining discipline in the workplace and it falls within the authority and function of any supervisory position in TFG to discipline employees who contravene workplace rules and standards. Line managers who fail to discipline employees when required will themselves be subjected to disciplinary action.
- 1.3.3 The norms of procedural and substantive fairness should be applied and maintained in all disciplinary discussions and enquiries as envisaged by the Code of Good Practice: Dismissal in Schedule 8 of the Labour Relations Act 66 of 1995.
- 1.3.4 Discipline should be applied progressively in that disciplinary sanctions should increase depending on the repetition of transgressions or the severity of the transgression. However, serious breaches of TFG's workplace rules could result in dismissal, even if it is a first transgression.

1.4 DISCIPLINARY PROCESS

- 1.4.1 When misconduct is suspected, line management must investigate the facts surrounding the incident and depending on the seriousness of the incident, proceed with either informal or formal disciplinary action against the employee.
- 1.4.2 Line management must make a preliminary assessment of the facts to determine the seriousness of the misconduct. If progressive discipline is warranted, a disciplinary discussion must be held. If dismissal is possible, a disciplinary enquiry must be held. Refer to the FLOW DIAGRAM of the different processes below.
- 1.4.3 When an employee is accused of serious misconduct, they will be entitled to the following:
 - 1.4.3.1 a verbal or written notice (depending on the practicalities of the situation) of the nature of the allegations, using a form and language that the employee can reasonably understand;
 - 1.4.3.2 a reasonable time to prepare a response to the allegations;
 - 1.4.3.3 the opportunity to state a case and, where applicable, present evidence (which includes calling witnesses) in their defence to the allegations;
 - 1.4.3.4 to cross examine any witnesses called by TFG; and
 - 1.4.3.5 the assistance of a trade union representative or a colleague at the disciplinary discussion or enquiry (legal representation will not be allowed).
- 1.4.4 If an employee fails to attend a disciplinary enquiry without good cause or continuously requests postponements of the proceedings, the disciplinary enquiry may proceed in the employee's absence.
- 1.4.5 Line management shall consult with the Fuse before initiating any disciplinary enquiry.
- 1.4.6 TFG may appoint an external chairperson to preside over any disciplinary enquiry and to make a recommendation on the outcome of the enquiry. TFG reserves the right to either accept or reject any such recommendation by the chairperson, and where deemed appropriate, to impose its own outcome.
- 1.4.7 If the employee is dismissed, the employee must be informed of the reason for the dismissal and be reminded of any right to refer the matter to an appropriate external dispute resolution forum.

DISCIPLINARY PROCESS FLOW DIAGRAM



1.5 DISCIPLINARY SANCTIONS

- 1.5.1 TFG subscribes to a process of progressive discipline. However, the sanction of dismissal may be imposed for a first transgression, depending on the seriousness of the transgression.
- 1.5.2 The following sanctions may be issued when an employee has been found guilty of misconduct:
 - 1.5.2.1 Verbal warning valid for 3 months
 - 1.5.2.2 Written warning valid for 6 months
 - 1.5.2.3 Final written warning valid for 12 months
 - 1.5.2.4 Dismissal
- 1.5.3 A comprehensive final written warning valid for 12 months MAY be issued if ALL the following factors are present:
 - 1.5.3.1 the employee has a current, valid final written warning on record;
 - 1.5.3.2 the employee transgresses again in respect of any form of misconduct; and
 - 1.5.3.3 the latest transgression / misconduct is serious enough in its own right to warrant a final written warning.
 - 1.5.3.4 the effect of a CFWW is that any future transgressions within a 12 month period, whether related or unrelated to the transgression for which the CFWW was issued, are likely to result in a dismissal.

1.6 SUSPENSION WITH PAY

- 1.6.1 An employee may be suspended pending the outcome of an investigation into alleged misconduct or pending the finalisation of a disciplinary enquiry.
- 1.6.2 The suspension will be with full pay and benefits and is not a disciplinary sanction.
- 1.6.3 The line manager should consult the Fuse before suspending an employee.

1.7 DISPUTE RESOLUTION

Any employee who believes that he or she has been unfairly disciplined or dismissed may refer a dispute to the CCMA or applicable bargaining or statutory council within the legislated time period after the sanction is imposed.

1.8 TFG POLICIES, PROCEDURES AND VALUES

TFG employees must familiarise themselves with the policies, rules and procedures of the Company (as amended from time to time) and must conduct themselves accordingly. Failure to comply with TFG's rules and policies or failure to act according to TFG's values may result in the instituting of disciplinary action.

1.8.1 OUR VALUES

VALUES		
WE PUT OUR CUSTOMERS FIRST.	WE WORK SMART AND FAST.	WE DO THE RIGHT THING.
IF WE DON'T PLEASE OUR CUSTOMERS, THEY'LL FIND SOMEONE WHO DOES.	TODAY, STAYING IN THE SAME PLACE MEANS BECOMING IRRELEVANT.	AND WE DO THINGS RIGHT.
We deliver the best quality customer outcomes by putting data and analytics at the heart of our decision-making. We embrace new ideas, technologies and innovations that help deliver the right product and the best shopping experience to our customers. We ask questions and track the impact of our actions to continually enhance the customer experience, making sure we never lose a sale.	We take quick, effective and decisive action using data-led insights. We constantly push ourselves and one another to maximize the impact of our actions and find better ways to serve our customers. Our entrepreneurial spirit is brought to life by our “out of the box” problem solving and commitment to fresh ideas and thinking. We know we don't have all the answers, but we push boundaries, take risks, try new things and grow from our experience.	We care deeply about what we do and how we do it, taking accountability even when no one is looking. We are inclusive, we embrace diversity and treat everyone with equal dignity. If we make mistakes, we own them, rectify them, and use them to learn for the future. We build on strengths of our heritage but are committed to continuous improvement for generations to come

1.8.2 IMPORTANT POLICIES

Any form of misconduct regarding the following policies and procedures is of specific significance. The list of policies is not exhaustive, and it is the responsibility of all employees to familiarise themselves with these policies, including but not limited to TFG's:

- Code of Ethical Conduct
- Corporate Social Media Policy
- Sexual Harassment Policy
- Substance Abuse Policy
- Conflict of Interest Policy

These policies are available on the HR Hub.

2. PROCEDURE

2.1 GUIDELINES FOR DISCIPLINE

This guideline provides a list of possible transgressions and applicable recommended sanction/s. The following general comments about the guideline are important:

- 2.1.1 Each case is unique, and the suggested sanctions are only guidelines on how certain categories of misconduct, or departure/s from standards, should be approached. There will be instances where the particular circumstances of a case may justify a departure from these guidelines. Accordingly, the list of transgressions and recommended sanctions should not be seen as exhaustive or cast in stone.
- 2.1.2 It is impossible to list every possible type of unacceptable conduct which may occur. Some transgressions are so obvious or trite that it is unnecessary to list them. TFG reasonably expects employees to have knowledge of these transgressions and their consequences, for example, that stealing company property will be viewed as a very serious, dismissible transgression.
- 2.1.3 The responsibility for the application of discipline remains the prerogative of management, and as long as it is fair and reasonable, any misconduct will result in disciplinary action.
- 2.1.4 Remember, the list of recommended sanctions is only intended as a guideline to ensure consistency and fairness. Special circumstances surrounding any particular case may justify the imposition of a lesser or more serious sanction. If in doubt, please consult the Fuse.

Contact details for the Fuse:

Website: synergy.tfg.co.za
Whatsapp: 060 534 4503
Tel: 0027 21 937 4742

2.2 DUTY TO PROVIDE A SERVICE

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRESSION	2ND TRANSGRESSION	3RD TRANSGRESSION	4TH TRANSGRESSION
Abuse of sick leave	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Failure to adhere to working hours/schedules	Verbal Warning	Written Warning	Final Written Warning	Dismissal
Sleeping on duty	Written Warning	Final Written Warning	Dismissal	
Unauthorised/ uncommunicated absence from work	Verbal Warning (1 day absent)	Written Warning (2 days absent)	Final written warning (3 days absent)	Dismissal (4 days or more absent)
Desertion	Dismissal			
Unreasonable refusal to work overtime	Final Written Warning/ Dismissal	Dismissal		
Wasting company time and resources (private calls, internet use, social media, socialising, idleness, loafing etc.)	Verbal Warning	Written Warning	Final Written Warning	Dismissal

2.3 DUTY OF RESPECT

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRES-SION	2ND TRANSGRES-SION	3RD TRANSGRES-SION	4TH TRANSGRES-SION
Insubordination/ refusal to carry out a lawful and reasonable instruction	Final Written Warning/ Dismissal	Dismissal		
Failure to provide good customer service	Written Warning/ Final Written Warning	Final Written Warning/ Dismissal	Dismissal	
Impertinence, insolence, rudeness or disrespect	Verbal Warning/ Written Warning/ Final Written Warning	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal
Conducting a strip search	Dismissal			
Use of abusive/derogatory/racist language	Dismissal			
Use of inappropriate language or making obscene gestures or any conduct that diminishes the dignity of another	Final Written Warning/ Dismissal	Dismissal		
Victimisation, bullying, intimidation, unfair discrimination, racism or harassment of any kind	Dismissal			
Sexual harassment	Dismissal			
Threatening comments or behaviour	Dismissal			
Assault and/or attempted assault and/or threat of assault (verbal or physical), or inciting other employees to violence	Dismissal			
Viewing, downloading, accessing or distributing pornographic or racist material in any format at work or on company assets	Dismissal			
Viewing, distributing, downloading or accessing offensive material in any format at work or on company assets	Final Written Warning/ Dismissal	Dismissal		

2.4 DUTY TO BE HONEST

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRESSION	2ND TRANSGRESSION	3RD TRANSGRESSION	4TH TRANSGRESSION
Dishonesty of any kind including theft, fraud, bribery, corruption, forgery, making false statements or giving false evidence, misappropriation or misapplication of money and/or company property	Dismissal			
Any effort, conspiracy or co-operation to commit or be an accessory to any of the abovementioned transgressions	Dismissal			
Unauthorised removal, possession, concealment or use of property of the company, colleagues or customers	Dismissal			
Unauthorised removal, possession, concealment or use of property belonging to other retailers or similar (for example shoplifting)	Dismissal			
All forms of misrepresentation of information (for e.g. altering or falsifying any documentation, misrepresenting stock counts, fraudulent rewards card swipes etc.)	Dismissal			
Logging and/ or clocking in or out on behalf of a colleague	Dismissal			
Making a false charge or allegation against a colleague, manager or customer	Dismissal			

2.5 DUTY TO BE DILIGENT

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRESSION	2ND TRANSGRESSION	3RD TRANSGRESSION	4TH TRANSGRESSION
Gross Negligence/Gross Dereliction of duty	Final Written Warning/ Dismissal	Dismissal		
Negligence/Dereliction of duty	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Failure to comply with company policies and procedures, including, but not limited to, failure to adhere to stock loss rules, failure to complete store admin, etc	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Accidental damage to property of company, customers or suppliers	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Failure to balance POS terminal	Refer to Cash Variance Policy			

2.6 DUTY TO DEMONSTRATE ACCEPTABLE CONDUCT

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRESSION	2ND TRANSGRESSION	3RD TRANSGRESSION	4TH TRANSGRESSION
Failure to conduct oneself according to the company values	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Unauthorised possession or use of firearms or other dangerous weapons on company, customer or supplier premises	Final Written Warning/ Dismissal	Dismissal		
Refusal to be searched when entering or leaving company premises or subjecting yourself to a breathalyser or polygraph examination	Final Written Warning/ Dismissal	Dismissal		
Participating in or inciting employees to partake in any form of illegal industrial action	Dismissal			
Unacceptable conduct during picketing, for example, victimisation, personal insults, preventing customers or suppliers from doing business, disruption of business, etc	Dismissal			
Intentional damage to property of company, customers or suppliers	Dismissal			
The unauthorised use /consumption/ possession/ sale/ distribution/ purchase of alcohol on company, customer or supplier premises or while on duty	Dismissal			
The use / consumption/ possession/ sale/ distribution/ purchase of drugs on company, customer or supplier premises or while on duty	Dismissal			
Being under the influence of alcohol or drugs on company premises or whilst on duty or whilst driving a company vehicle	Final Written Warning/ Dismissal	Dismissal		
Failure to report a work-related accident or damage to company property	Final Written Warning/ Dismissal	Dismissal		
Failure to adhere to safety/security regulations or other safety procedures	Final Written Warning/ Dismissal	Dismissal		

2.6 DUTY TO DEMONSTRATE ACCEPTABLE CONDUCT

Failure to wear prescribed uniform/dress code/safety gear	Written Warning/ Final Written Warning	Final Written Warning/ Dismissal	Dismissal	
Poor housekeeping and hygiene standards	Verbal Warning	Written Warning	Final Written Warning	Dismissal
Operating and/or participating in a money lending scheme involving employees	Final Written Warning/ Dismissal	Dismissal		
Gambling on company premises	Final Written Warning/ Dismissal	Dismissal		
Plagiarism	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Call avoidance, for example: intentional dropping of calls, putting callers/customers on mute or on hold inappropriately	Written Warning/ Final Written Warning	Final Written Warning/ Dismissal	Dismissal	
Abuse of company resources, including time, telephone, photocopier, internet, vehicle etc.	Verbal Warning/ Written Warning	Written Warning/ Final Written Warning	Final Written Warning/ Dismissal	Dismissal
Unauthorised copying of programmes, files or documents, etc. belonging to the company	Final Written Warning/ Dismissal	Dismissal		
Unauthorised copying or pirating/ purchase/ possession or distribution of copies/pirated software or publications	Final Written Warning/ Dismissal	Dismissal		
Divulging confidential company information, usernames, passwords, alarm, computer access or POS codes to a colleague or third party or allowing a colleague or third party to use any of the above or using any of the above belonging to a colleague	Final Written Warning/ Dismissal	Dismissal		
Allowing unauthorised people to benefit from your employee discount/ unauthorised transacting on your employee account	Final Written Warning/ Dismissal			
Off duty conduct or conduct of an employee outside the workplace which impacts negatively on the employment relationship and/or company reputation	Final Written Warning/ Dismissal	Dismissal		
Acting outside the scope of your authority	Final Written Warning/ Dismissal	Dismissal		

2.7 DUTY TO ACT IN GOOD FAITH

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRESSION	2ND TRANSGRESSION	3RD TRANSGRESSION	4TH TRANSGRESSION
Bringing or attempting to bring the name of the company into disrepute	Dismissal			
Any effort, favouring, conspiracy or co-operation to commit or be an accessory to any act of misconduct	Written Warning/Final Written Warning/Dismissal	Final Written Warning/Dismissal	Dismissal	
Failure to report knowledge of misconduct or safety risks	Written Warning/Final Written Warning	Final Written Warning/Dismissal	Dismissal	
Failure to report knowledge of serious misconduct, corrupt activities, theft, sabotage or conflict of interest	Dismissal			
Unauthorised work for a competitor or work in competition with the business of the company	Dismissal			
Conduct that involves conflict of interest or potential conflict of interest with the company	Final Written Warning/Dismissal	Dismissal		
Accepting unauthorised gifts/services/bribes from customers and/or suppliers	Final Written Warning/Dismissal	Dismissal		
Failure to protect the interests of the Company	Written Warning/ Final Written Warning/ Dismissal	Final Written Warning/ Dismissal	Dismissal	
Making, publishing, posting, giving to the press or any other person, customers or organisation or on any social media platform, a statement or any information concerning an employee, manager, the company and/or its services, products, policies, etc. which is confidential, false, vicious, malicious, offensive or derogatory	Final Written Warning/ Dismissal	Dismissal		
Unauthorised disclosure of confidential information	Final Written Warning/ Dismissal	Dismissal		
Failing to disclose a conflict of interest	Final Written Warning/ Dismissal	Dismissal		

2.8 GENERAL

TRANSGRESSION (DESCRIPTION)	1ST TRANSGRES- SION	2ND TRANSGRES- SION	3RD TRANSGRES- SION	4TH TRANSGRES- SION
Any action that results in the relationship of trust implied in the employment contract, being damaged or broken	Dismissal			